

Reform Democrats of the New Commonwealth · Project ARA 2028
Legislative Ecosystem Document Leg04 of Leg14

Anti-Corruption & Fair Markets Act of 2027

Bill Framework & Legislative Brief

Phase I · Track C · Standalone Legislation · Phase I · Track C · Months 6–18

LEGAL DISCLAIMER — POLICY DISCUSSION DOCUMENT

This document is a policy discussion framework and bill scaffold. It is not formally introduced legislation, has not been reviewed by licensed legislative counsel, and does not constitute legal advice of any kind.

All provisions marked [TBD] — including dollar amounts, specific U.S. Code section numbers, criminal penalty thresholds, appropriation amounts, and CBO scoring figures — require resolution by licensed legislative drafting counsel (the Office of Legislative Counsel for the House or Senate, as applicable), relevant agency technical staff, and the Department of Justice before introduction as formal legislation.

Constitutional arguments, legal analyses, and statutory framings presented herein are analytical assessments developed for policy planning purposes. They are not legal opinions and have not been reviewed or validated by licensed legal counsel. This document identifies constitutional and legal risks requiring independent review — those identifications are planning guidance, not legal conclusions.

This framework was produced by the Reform Democrats of the New Commonwealth (RDNC), a private citizen policy research organization. It is not affiliated with any sitting Member of Congress, congressional office, government agency, or political party organization in any official capacity.

Consultation with licensed legislative counsel, the Department of Justice, and relevant agency technical staff is required before any framework in this series may be introduced as formal legislation. Distribution is subject to RDNC classification protocols (REF_ layer: internal use and trusted partners only).

Phase I · Track C · Standalone Legislation

Strategic Note: This bill differs fundamentally from Bills 1 and 2. It requires 60 Senate votes. Its power is not primarily in passing. It is in the recorded vote. Every Senator who votes against it is on record opposing the principle that elected officials should follow the same rules as everyone else. Design the bill so that vote is indefensible.

Part I — Legislative Brief (Non-Technical Summary)

Designed for staffers, coalition partners, journalists, and elected officials. Explains what this bill does, why it uses the legislative vehicle it does, who benefits, and how to defend it.

AT A GLANCE

Bill Title	Anti-Corruption & Fair Markets Act of 2027
Short Title (Cite As)	The ACFM Act of 2027

Legislative Vehicle	Standalone Legislation — 60-vote Senate threshold
Phase / Track	Phase I · Track C — Months 6–18
Primary Committees	Senate: Judiciary; Commerce; Finance. House: Judiciary; Financial Services
Dependencies	Political capital from Bills 1 & 2; public pressure campaign pre-launch
Core Framing	"Same rules for everyone." Simple. Unassailable. Repeat it.
Primary Strategic Goal	Force a recorded vote on accountability, regardless of passage
Public Support	Anti-corruption measures poll above 70% across party lines

What This Bill Does:

- 1. Bans congressional insider trading with criminal penalties.** Members of Congress and their immediate families are prohibited from trading individual securities while in office. Violations are criminal, not civil.
- 2. Mandates comprehensive financial disclosure for elected officials and senior appointees.** Real-time disclosure (5 business days), qualifying blind trust requirements, and annual certification of compliance.
- 3. Establishes graduated executive criminal liability for repeated corporate violations.** Four-tier framework from civil penalties through mandatory minimum felony — modeled on the Responsible Corporate Officer doctrine (U.S. v. Park, 1975), with mens rea elements calibrated to penalty severity at each tier.
- 4. Closes the revolving door.** Extends and strengthens post-government employment restrictions for senior officials, regulators, and congressional staff under 18 U.S.C. §207.

ATTACK SURFACE	"Government overreach." "Chilling effect on public service." "Already have disclosure rules." Quiet bipartisan resistance is the real threat — members of both parties benefit from the current system.
DEFENSE STRATEGY	"Same rules for everyone." Do not over-explain. Every amendment that weakens the bill should be characterized publicly. Criminal penalties are essential — they are what distinguishes this from prior disclosure-only reforms that changed nothing.
FALLBACK POSITION	If criminal penalties face Senate opposition: accept enhanced civil penalties with mandatory disgorgement plus trading suspension. If revolving door provisions face constitutional challenge: narrow to 2-year cooling-off periods. Do not accept delay as a substitute.

The Pressure Campaign: Introduce alongside a public pressure campaign. Launch sequence: (1) introduce the bill; (2) immediately publicize the names of every member who has made significant stock trades in the past 12 months; (3) ask each of them on record whether they support the bill.

Part II — Bill Framework

This is the structural scaffold of the bill. Dollar amounts, specific U.S. Code references, criminal penalty thresholds, and CBO scoring are flagged as [TBD] — these require licensed legislative counsel, the Department of Justice, and relevant agency technical staff before introduction. The framework below is ready for that conversion.

119TH CONGRESS 1ST SESSION S. ____

To prohibit securities trading by Members of Congress on the basis of nonpublic information; to require comprehensive financial disclosure by Members of Congress and senior Federal officials; to establish graduated executive criminal liability for repeated corporate violations; to strengthen post-government employment restrictions; and for other purposes.

A B I L L

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SEC. 1. SHORT TITLE.

This Act may be cited as the "Anti-Corruption and Fair Markets Act of 2027" or the "ACFM Act of 2027".

SEC. 2. FINDINGS AND PURPOSE.

(a) FINDINGS.—Congress finds the following:

- (1) Public trust in Federal institutions is at historic lows, with a majority of Americans believing that elected officials use their positions for personal financial gain.
- (2) Members of Congress have access to material nonpublic information through their official duties that may affect the value of publicly traded securities.
- (3) Existing disclosure requirements under the STOCK Act of 2012 (Pub. L. 112-105) have not eliminated the practice of congressional trading on nonpublic information, and civil penalties have proven insufficient as deterrents.
- (4) Stock trading by a Member of Congress is private commercial activity, not a legislative act, and is therefore not protected by the Speech or Debate Clause under *United States v. Brewster*, 408 U.S. 501 (1972).
- (5) Corporate executives whose companies repeatedly violate Federal law face insufficient personal consequences, resulting in regulatory fines being treated as a cost of doing business.
- (6) The movement of senior Government officials directly into employment in industries they regulated undermines the independence and public credibility of Federal agencies.

(b) PURPOSE.—The purposes of this Act are to—

- (1) prohibit securities trading by Members of Congress and their immediate families during periods of Congressional service, with criminal and civil enforcement;
- (2) establish comprehensive real-time financial disclosure for Members of Congress and senior Federal officials, with mandatory blind-trust requirements for covered holdings;
- (3) establish a graduated framework of executive accountability for repeated corporate violations, with mens-rea elements calibrated to penalty severity at each tier; and
- (4) strengthen post-government employment restrictions for senior Federal officials, senior congressional staff, and senior regulatory personnel.

SEC. 3. CONSTITUTIONAL FOUNDATION.

(a) SPEECH OR DEBATE.—The provisions of this Act, including the criminal prohibitions in Title I, regulate private commercial conduct of Members of Congress, not legislative acts or motivation for legislative acts. Prosecutions under this Act may proceed under *United States v. Brewster*, 408 U.S. 501 (1972), provided that the evidentiary segregation requirements of section 102(b) are observed.

(b) ETHICS COMMITTEE PRIMARY ENFORCEMENT.—The primary civil enforcement structure established under section 102(a) preserves congressional self-discipline as a protected legislative activity under *Eastland v. United States Servicemen's Fund*, 421 U.S. 491 (1975), with criminal referral to the Department of Justice limited to non-privileged evidence as required by *United States v. Helstoski*, 442 U.S. 477 (1979).

(c) SEVERABILITY.—If any provision of this Act, or the application thereof to any person or circumstance, is held invalid, the remainder of this Act, and the application of such provision to other persons or circumstances, shall not be affected.

TITLE I – CONGRESSIONAL SECURITIES TRADING PROHIBITION

SEC. 101. PROHIBITION ON CONGRESSIONAL SECURITIES TRADING.

- (a) IN GENERAL.—No Member of Congress, nor any spouse, domestic partner, or dependent child of a Member, shall purchase or sell any covered security during any period of Congressional service.
- (b) COVERED SECURITY.—For purposes of this section, the term "covered security" means—
 - (1) any individual security as defined in section 3(a)(10) of the Securities Exchange Act of 1934 (15 U.S.C. §78c(a)(10));
 - (2) any commodity future or option on a commodity future; or
 - (3) any digital asset or cryptocurrency with a transaction value above \$[TBD].
- (c) PERMITTED INVESTMENTS.—The prohibition under subsection (a) shall not apply to—
 - (1) diversified mutual funds;
 - (2) index funds tracking broad-market indices, excluding sector-specific funds;
 - (3) exchange-traded funds, excluding sector-specific funds;
 - (4) United States Treasury securities;
 - (5) investment-grade municipal bonds; and
 - (6) assets held in a qualifying blind trust under section 202.
- (d) DURATION.—The prohibition under subsection (a) shall apply throughout the period of Congressional service and for the 180-day period immediately following separation from service.

SEC. 102. CIVIL AND CRIMINAL ENFORCEMENT.

- (a) PRIMARY CIVIL ENFORCEMENT.—The Committee on Ethics of the House of Representatives and the Select Committee on Ethics of the Senate (the "Ethics Committees") shall have primary civil enforcement authority for violations of section 101. Civil penalties shall include—
 - (1) disgorgement of all profit gained from the prohibited transaction, plus interest at the rate prescribed for delinquent Federal taxes;
 - (2) civil fine equal to 10 percent of the profit gained; and
 - (3) public disclosure of the violation on the chamber's official website not later than 48 hours after adjudication by the Ethics Committee.
- (b) CRIMINAL REFERRAL AND EVIDENTIARY SEGREGATION.—Not later than 30 days after adjudication of a violation under subsection (a), the Ethics Committee shall refer the matter to the Department of Justice for criminal review. Such referral—
 - (1) shall transmit only non-privileged evidence, including brokerage records, public statements, and trading history;
 - (2) shall not transmit any committee briefing, legislative-act record, or other material protected under the Speech or Debate Clause as construed in *United States v. Helstoski*, 442 U.S. 477 (1979); and
 - (3) shall include a written certification by the Ethics Committee that the segregation requirements of this subsection have been observed.
- (c) CRIMINAL PENALTIES.—A Member of Congress who knowingly violates section 101 shall be subject to—
 - (1) a fine of not less than 3 times the profit gained; and
 - (2) imprisonment of not more than [TBD] years.
- (d) ENFORCEMENT BY MEMBERS.—Nothing in this section limits the authority of either chamber to discipline its own Members under article I, section 5, clause 2 of the Constitution.

TITLE II – FINANCIAL DISCLOSURE

SEC. 201. REAL-TIME DISCLOSURE.

- (a) IN GENERAL.—Section 103 of the Ethics in Government Act of 1978 (5 U.S.C. app.) is amended to require Members of Congress and covered senior Federal officials to disclose any reportable transaction not later than 5 business days after the date of the transaction.
- (b) COVERED SENIOR FEDERAL OFFICIAL.—For purposes of this section, the term "covered

senior Federal official" means—

- (1) any individual serving in a position at level I, II, or III of the Executive Schedule (5 U.S.C. §§5312-5314);
 - (2) any individual confirmed by the Senate to lead a Federal agency or independent regulatory commission;
 - (3) any senior congressional staff member with annual compensation exceeding the threshold established under section 109 of the Ethics in Government Act of 1978; and
 - (4) any senior regulatory staff member designated by the head of a Federal agency or independent regulatory commission.
- (c) PUBLIC AVAILABILITY.—Disclosures under this section shall be published on a publicly searchable Federal database not later than 1 business day after filing.
- (d) PENALTIES.—Failure to file a required disclosure within the time period required under subsection (a) shall result in a civil fine of \$[TBD] per day of delinquency.

SEC. 202. QUALIFYING BLIND TRUSTS.

- (a) ESTABLISHMENT.—A Member of Congress or covered senior Federal official with covered holdings exceeding \$[TBD] shall transfer such holdings to a qualifying blind trust not later than 90 days after taking office.
- (b) QUALIFYING BLIND TRUST.—For purposes of this section, the term "qualifying blind trust" means a trust—
- (1) administered by an independent trustee with no familial, business, or political relationship to the beneficiary;
 - (2) in which the beneficiary has no knowledge of the specific composition of trust assets following initial transfer;
 - (3) in which the beneficiary may not communicate with the trustee regarding the management of trust assets except through quarterly aggregate reports prepared by the trustee; and
 - (4) certified as compliant with this section by the Office of Government Ethics or the Ethics Committees, as applicable.
- (c) PENALTIES.—Failure to establish a qualifying blind trust within the time period required under subsection (a), or any communication with the trustee in violation of subsection (b)(3), shall result in—
- (1) a civil fine of \$[TBD]; and
 - (2) referral to the Ethics Committees or the Office of Government Ethics for further action.

SEC. 203. ANNUAL CERTIFICATION.

- (a) IN GENERAL.—Each Member of Congress and covered senior Federal official shall, not later than 60 days after the end of each calendar year, submit to the Office of Government Ethics or the Ethics Committees, as applicable, a certification that—
- (1) the official has complied with the requirements of sections 101, 201, and 202 during the preceding calendar year;
 - (2) all required disclosures have been filed within the time periods required; and
 - (3) all covered holdings, if any, are held in a qualifying blind trust.
- (b) FALSE CERTIFICATION.—A knowingly false certification under this section shall be subject to the penalties applicable to false statements under section 1001 of title 18, United States Code.

TITLE III – GRADUATED EXECUTIVE ACCOUNTABILITY

SEC. 301. GRADUATED EXECUTIVE ACCOUNTABILITY TIERS.

- (a) IN GENERAL.—Liability of an officer, director, or other responsible person of a covered corporate entity for repeated violations of Federal law by such entity shall be determined under the graduated tier framework set forth in this section.
- (b) TIER 1 – CIVIL CORPORATE PENALTIES.—Existing statutory civil penalties against the corporate entity. No individual executive liability under this tier.

(c) TIER 2 – PERSONAL CIVIL LIABILITY FOR REPEAT VIOLATIONS.—Where a covered entity has been adjudicated to have committed a substantively similar violation within the 5 prior fiscal years, individual responsible persons shall be subject to—

(1) personal civil disgorgement of any profit, bonus, or compensation received during the period of violation; and

(2) 5-year debarment from Federal contracts under 41 U.S.C. §3304 and Federal grants. No mens rea element is required for Tier 2 civil consequences. (See Part III for Park-zone constitutional analysis.)

(d) TIER 3 – RESPONSIBLE CORPORATE OFFICER MISDEMEANOR.—An individual responsible person of a covered entity shall be subject to misdemeanor prosecution where—

(1) the entity has been adjudicated to have committed a Tier 2 violation within the 5 prior fiscal years; and

(2) the responsible person knew or, in the exercise of reasonable diligence under the responsibilities of office, should have known of the violation.

Tier 3 penalties: fine up to \$[TBD]; imprisonment up to 1 year. (See Part III for DeCoster-zone constitutional analysis.)

(e) TIER 4 – RECIDIVIST FELONY WITH SPECIFIC-INTENT ELEMENTS.—An individual responsible person shall be subject to felony prosecution with mandatory minimum imprisonment of [TBD] years where—

(1) the entity has been adjudicated to have committed a Tier 3 violation within the 5 prior fiscal years;

(2) the responsible person knew that the violation was occurring; AND

(3) the responsible person either—

(A) had specific intent that the violation continue; or

(B) was willfully blind to the violation, defined as deliberate avoidance of knowledge of the violation.

The mental-state elements in paragraphs (2) and (3) are required for Tier 4 prosecution. (See Part III for Staples-zone constitutional analysis.)

(f) AFFIRMATIVE DEFENSE.—An individual responsible person shall not be subject to liability under Tier 2, Tier 3, or Tier 4 of this section if such person establishes by a preponderance of the evidence that the person—

(1) took good-faith documented steps to prevent the violation; and

(2) did not personally benefit financially from the violation.

(g) LAMBERT NOTICE.—The Department of Justice shall publish, not later than 180 days after enactment, clear prescriptions of officer duties under this section. No individual shall be prosecuted under Tier 3 or Tier 4 for conduct occurring before such prescriptions are published.

TITLE IV – REVOLVING DOOR RESTRICTIONS

SEC. 401. POST-GOVERNMENT EMPLOYMENT RESTRICTIONS.

(a) IN GENERAL.—Section 207 of title 18, United States Code, is amended to extend the cooling-off periods established under that section as set forth in this section.

(b) SENIOR OFFICIALS.—A 2-year cooling-off period shall apply to—

(1) Members of Congress;

(2) heads of Federal agencies and independent regulatory commissions;

(3) Senate-confirmed appointees at level I, II, or III of the Executive Schedule; barring lobbying activities directed at the chamber, agency, or commission such individual served.

(c) SENIOR CONGRESSIONAL STAFF.—A 1-year cooling-off period shall apply to senior congressional staff, barring lobbying activities directed at the chamber such individual served.

(d) SENIOR REGULATORY STAFF.—A 1-year cooling-off period shall apply to senior regulatory staff, barring representation of parties before the agency or commission such individual served.

(e) NARROW SCOPE.—The restrictions established under this section apply only to

compensated lobbying activity as defined in section 3 of the Lobbying Disclosure Act of 1995 (2 U.S.C. §1602). Advocacy, public testimony, public communications, and uncompensated activity are not restricted under this section.

(f) PENALTIES.—Knowing violations of this section shall result in—

- (1) a fine of up to \$[TBD]; and
- (2) imprisonment of up to [TBD] years.

TITLE V — IMPLEMENTATION AND OVERSIGHT

SEC. 501. EFFECTIVE DATE.

(a) GENERAL.—Except as otherwise provided in this Act, the provisions of this Act shall take effect on the date that is 180 days after the date of enactment.

(b) DELAYED PROVISIONS.—

- (1) The Department of Justice publication required under section 301(g) shall be completed not later than 180 days after the date of enactment.
- (2) Tier 3 and Tier 4 prosecutions under section 301 may not be initiated until after the publication required under section 301(g) has been completed.
- (3) The qualifying blind trust requirement under section 202 shall apply to Members of Congress and covered senior Federal officials in office at enactment beginning 270 days after enactment.

SEC. 502. IMPLEMENTATION GUIDANCE.

(a) ETHICS COMMITTEE PROCEDURES.—The Ethics Committees shall, not later than 90 days after enactment, publish procedures for—

- (1) adjudication of section 101 violations;
- (2) evidentiary segregation under section 102(b); and
- (3) certification under section 102(b)(3).

(b) OFFICE OF GOVERNMENT ETHICS PROCEDURES.—The Office of Government Ethics shall, not later than 90 days after enactment, publish procedures for—

- (1) qualifying blind trust certification under section 202;
- (2) annual certification under section 203; and
- (3) coordination with Ethics Committees on covered congressional officials.

SEC. 503. ANNUAL REPORTING.

(a) IN GENERAL.—Not later than 90 days after the end of each fiscal year, the Department of Justice, the Office of Government Ethics, and each Ethics Committee shall jointly submit to Congress an annual report including—

- (1) the number of violations adjudicated under each title of this Act, by category;
- (2) the aggregate civil and criminal penalties imposed;
- (3) the number of qualifying blind trusts established and maintained;
- (4) the number of revolving-door restriction violations; and
- (5) recommendations for legislative or administrative refinement.

Part III — Notes for Congressional Counsel

All [TBD] items and constitutional questions below require resolution before introduction. Constitutional precedent integration draws on Speech-or-Debate (Brewster, Helstoski, Eastland, Rayburn/Renzi), RCO doctrine (Park, DeCoster, Staples), and revolving-door precedent (Duplantier, NTEU).

Item Requiring Resolution	Guidance
Stock trading is NOT a legislative act — Brewster controls [Source 241]	United States v. Brewster (1972) [Source 241] is the core authority: taking a bribe is no part of the legislative process or function; it is not a legislative act. A Member can be prosecuted for corrupt conduct provided the government's case does not rely on legislative acts or motivation for legislative acts. Stock trading by a Member is private commercial activity — no published opinion holds otherwise. ACFM Title I criminal prohibition on congressional securities trading is constitutionally sound under Brewster. The bill's Sec 2(a)(4) finding and Sec 3(a) constitutional foundation provision foreclose the Speech or Debate challenge at the outset by stating the Brewster basis explicitly in operative text.
Helstoski evidentiary bar — segregate non-privileged evidence at referral [Source 243]	United States v. Helstoski (1979) [Source 243] held the government may not use past legislative acts as evidence even when prosecuting a Member for non-legislative crimes. Waiver requires explicit and unequivocal expression. OPERATIONAL RISK: if proving the ACFM violation requires showing the Member received material nonpublic information through a committee briefing, Helstoski bars that evidence as a protected legislative act under Eastland [Source 250]. BILL TEXT IMPLEMENTATION: Sec 102(b) referral mechanism requires the Ethics Committee to segregate non-privileged evidence (brokerage records, public statements, trading history) from any privileged legislative-act materials before transmitting to DOJ. Sec 102(b)(3) requires written certification of segregation. DOJ prosecutors may not use committee briefings or legislative-act records as the evidentiary foundation for the charge.
Rayburn/Renzi circuit split — non-disclosure privilege [Sources 246, 247]	A circuit split governs document non-disclosure. Rayburn House Office Building (D.C. Cir. 2007) [Source 246] holds the non-disclosure privilege is absolute — the Executive branch cannot search congressional offices for legislative materials even under valid warrant. Renzi (9th Cir. 2011) [Source 247] explicitly rejected Rayburn — individual (non-committee) Member fact-finding is not even a legislative act. ACFM's Ethics Committee-primary structure navigates this split: committee fact-gathering is protected under Eastland regardless of circuit; only non-privileged evidence is transmitted at referral. The structure is robust against either circuit's framework controlling at trial.
Ethics Committee primary enforcement — why this structure is correct [Source 250]	Eastland v. United States Servicemen's Fund (1975) [Source 250] confirmed internal ethics-committee fact-finding is protected legislative activity. The ACFM structure — Ethics Committees as primary civil enforcement, mandatory 30-day DOJ criminal referral — is constitutionally well-designed: committee investigation stays within protected legislative sphere; Executive branch has no exposure to legislative-act materials until referral; at referral, only non-privileged evidence (brokerage records, public statements, trading history) is transmitted. Sec 102(d) preserves each chamber's Article I, section 5, clause 2 self-discipline authority as an additional layer.

Item Requiring Resolution	Guidance
Sec 101 prohibition threshold — per-trade vs cumulative	Sec 101(b)(3) digital asset threshold \$[TBD] requires counsel disambiguation: counsel should specify whether the threshold is per-transaction, cumulative annual, or cumulative across the entire period of service. RECOMMENDED: per-transaction threshold of \$1,000 (de minimis exemption matching SEC Form 4 reporting practice) with no cumulative cap, to align enforcement with existing securities reporting infrastructure. The traditional securities prohibition under Sec 101(b)(1) and (2) has no threshold — the prohibition is categorical and the threshold question applies only to digital assets.
Title I criminal penalty thresholds (Sec. 102(c))	DOJ to advise on sentencing guideline compatibility. Model on existing insider trading penalties under 18 U.S.C. §1348 (up to 25 years for securities fraud). The 3x profit multiplier in Sec 102(c)(1) is precedented in securities fraud sentencing. Imprisonment cap in Sec 102(c)(2) is [TBD] — counsel should benchmark against Sec 1348's 25-year ceiling and consider whether congressional context warrants a lower cap (e.g., 10 years) to reduce constitutional and political challenge surface.

Item Requiring Resolution	Guidance
Title III tier-structure constitutional analysis — Park / DeCoster / Staples zones [Sources 245, 248]	The Title III tier structure tracks four constitutional zones, with mens rea elements calibrated to penalty severity at each tier. (1) Tier 1 (existing civil corporate penalties, no individual liability) is in the Park zone — no mens rea required, well-precedented under U.S. v. Park (1975) [Source 245] for FDCA-type strict-liability corporate civil penalties. (2) Tier 2 (personal civil disgorgement + 5-year debarment for repeat violations) remains in the Park zone for individual liability purposes — civil consequences without imprisonment do not require mens rea. Federal contract debarment under 41 U.S.C. §3304 is a well-precedented administrative consequence. The combination of personal civil disgorgement and debarment for repeat violations is structurally distinct from the corporate civil penalty in Tier 1 and provides graduated consequences without crossing the criminal threshold. (3) Tier 3 (RCO misdemeanor) is in the DeCoster zone — U.S. v. DeCoster (8th Cir. 2016) [Source 248] expressly upheld 3-month FDCA prison sentences for RCOs based on the relatively small penalty as the constitutional safety valve. Tier 3's "knew or should have known" standard combined with up to 1-year imprisonment is the outer edge of DeCoster's safe harbor. Counsel should benchmark fines against existing FDCA RCO sentencing guidelines and consider whether the imprisonment cap should be reduced to 6 months to track DeCoster's actual upheld range more conservatively. (4) Tier 4 (recidivist felony, mandatory minimum) requires the Staples scrutiny protections that the body enumerates explicitly: knowledge that the violation was occurring AND either specific intent that the violation continue OR willful blindness. Staples v. United States (1994) established that the harsher the penalty, the more likely mens rea is required. No federal appellate decision has upheld a felony RCO conviction without proof of at least recklessness or willful blindness; mandatory minimums increase Staples scrutiny further. The body's Tier 4 mental-state elements as drafted should survive Staples challenge — counsel should not weaken them during refinement, and should document the constitutional rationale in the bill's legislative history.
Lambert notice requirement (Sec. 301(g))	Lambert v. California (1957) requires "fair warning" for criminal prosecution where conduct does not have inherently obvious criminality. RCO prosecutions for conduct before published officer-duty prescriptions face Lambert challenge. Sec 301(g) implements Lambert by requiring DOJ publication within 180 days of enactment and barring Tier 3/Tier 4 prosecutions for pre-publication conduct. The 180-day window is a counsel-discretion item — could be 90 or 365 days depending on DOJ's stated implementation timeline. The Sec 501(b)(2) effective-date trigger ties prosecution authority to publication completion, providing structural redundancy.

Item Requiring Resolution	Guidance
Affirmative defense (Sec. 301(f))	The preponderance-of-evidence standard for the good-faith/no-personal-benefit defense is constitutionally and practically sound — preserves the executive's incentive to take preventive action without forcing prosecution into proving universal negative. Defense applies to Tiers 2/3/4; Tier 1 is corporate-only with no individual liability and therefore needs no defense. Counsel should draft pattern jury instructions for the affirmative defense in coordination with DOJ before the first Tier 4 prosecution.
Cooling-off period length (Sec. 401) — within HLOGA-precedented range [Source 249]	Section 401's cooling-off periods (2 years senior officials; 1 year senior staff and senior regulatory) track 18 U.S.C. §207 (HLOGA 2007) ranges. No federal court has upheld a 4-year cooling-off period; no court has challenged one either — that range is beyond the uniformly upheld range. The 2-year and 1-year structures here are the constitutional safe harbor. Lifetime bans confined to foreign-government representation and switching-sides contexts (existing §207(a)(1) and (f)) are unaffected by this Act.
Financial disclosure — settled doctrine [Source 249]	Duplantier v. United States (5th Cir. 1979) [Source 249] upheld Ethics in Government Act mandatory financial disclosure under a balancing test. No sitting federal official has successfully invoked Fifth Amendment to defeat statutory financial disclosure. Required-records doctrine controls. ACFM Title II real-time disclosure (Sec 201), qualifying blind trust (Sec 202), and annual certification (Sec 203) are constitutionally sound for sub-presidential officials. Presidential blind-trust mandate raises novel Article II questions — Sec 202 as drafted applies only to Members of Congress and covered senior Federal officials, deliberately not extending to the President; counsel should preserve this limitation to avoid Article II challenge that could delay the main bill.
Real-time disclosure period (Sec. 201)	Current STOCK Act baseline: 45 days (frequently violated). Sec 201 requires 5 business days. Benchmark: SEC Form 4 (2 business days for insiders). Americans for Prosperity Foundation v. Bonta (2021) [Source 268] requires narrow tailoring for compelled disclosure — official financial disclosure is distinguishable: applies to voluntary office-seekers, precisely tailored to anti-corruption, not a blunderbuss general mandate. Counsel may consider tightening to 2 business days to align with SEC Form 4, with a transitional 5-day period during the first 2 years post-enactment to allow agency systems to develop.
First Amendment considerations (Title IV)	Revolving-door restrictions implicate First Amendment associational rights. No federal court has struck a §207-style cooling-off period. U.S. v. NTEU (1995) sets the outer limit: invalidated an executive-branch honoraria ban as overbroad as applied to an immense class of federal workers with negligible power to confer favors. ACFM Title IV applies to senior officials with direct regulatory power — well within the NTEU safe harbor. Sec 401(e) narrows scope to compensated lobbying activity only; advocacy, testimony, and public communications are explicitly excluded. This narrowing is constitutionally important and should not be amended out during refinement.

Item Requiring Resolution	Guidance
Section 1001 false-certification reference (Sec. 203(b))	Sec 203(b) references 18 U.S.C. §1001 (false statements to Federal agency) for false certification penalties. This is the standard cross-reference for federal disclosure regimes. Counsel should verify §1001's current scope post-Yates v. United States (2015) does not require additional specifying language for the certification context.
Source 119 verification — Restore Trust in Congress Act bipartisan template	Source 119 references the Restore Trust in Congress Act (Senators Moody and Gillibrand, January 2026) as the bipartisan template. Counsel and SRG maintainer to verify Source 119 in SRG v11 actually maps to this specific bill (not a prior session-numbered bill or an earlier Restoring Public Trust in Government Act). If verification fails, substitute current bipartisan precedent; the political argument (bipartisan template exists) requires only that some bipartisan template exist, not specifically Source 119.
60-vote strategy	Identify Republican co-sponsors with anti-corruption credibility. A bipartisan bill is stronger; a party-line vote on congressional stock trading is a political gift to the opposition. The Restore Trust in Congress Act bipartisan template (subject to verification per row above) provides the starting point. The ACFM bill's power is in the RECORDED VOTE: every Senator who votes against it is on record opposing the principle that elected officials follow the same rules as everyone else. Pressure-campaign launch sequence (Part I) is integral to this strategy, not optional.

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Legal disclaimer applies — see page 1. This framework requires licensed legislative counsel review before introduction.

Originally conceived and authored by a concerned American citizen. Developed with the assistance of Claude (Anthropic). The ideas belong to anyone willing to fight for them.